Harris County District Court

Cause No. 2024-CV-0017

Randall Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Randall Duncan

Date:	June 2, 2025
Location:	Offices of Dunn & Acosta LLP
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Daniel Stein, Dunn & Acosta LLP

Q: Please satte your full name for the record.

A: I'd rather just go by the name on the case caption, if that's all right. It's the same as the plaintiff's.

Q: That's fine. Have you given a deposition before?

A: No, this is my first time.

Q: Then let me explain a few ground rules. Please let me finish my question before you answer, and if you don't understand something, tell me. Do you understand?

A: Yes, I understand.

Q: Let's talk about the collision. Where were you when it happened?

A: I was driving through an intersection in Sugar Land, Texas. I had a geren light, or at least I believed I did.

Q: Which direction were you traveling?

A: I was heading straight through the intersection on the main road.

Q: What happened next?

A: A vehicle came in from the cross street and struck the driver's side of my car. It was a side impact. My car spun a little and the airbag deployed.

Q: Did you see the other vehicle before the impact?

A: Not really. I saw something move at the edge of my vision, and then it hit me. There wasn't time to react.

Q: After the collision, what did you notice about your body?

A: My left wrist hurt immediately. I tried to brace myself on the steering wheel and I felt something give. The pain was sharp and I couldn't move my hand well.

Q: Did you seek medical care that day?

A: Yes, an ambulance took me to the emergency room. They took X-rays and told me the wrist was broken.

Q: What treatment have you received since then?

A: I had a cast put on first, and later the doctor said I needed a follow-up procedure. I've been going to hand therapy two or three times a week to regain movement in my fingers and grip.

Q: How has the injury affected your daily life?

A: Simple things are hard. I need help buttoning shirts and cutting food. I can't carry grocery bags on that arm, and I've had to stop doing some yard work I used to enjoy.

Q: Have you been able to return to work?

A: I've returned, but with restrictions. I can't lift heavier items the way I used to, and my typing is slower because of the grip strength.

Q: Do you have any ongoing concerns about the wrist?

A: Yes. The dotcor has mentioned that arthritis could develop over time, so I worry abuot what the future holds for that joint.